

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUBC064160: BRITTANY TURNER, et al. vs PRIME PENINSULA, L.P. DBA PAZ
MAR**

09/02/2026 in Department 41

Demurrer to Plaintiffs' Complaint and Motion to Strike Portions of Plaintiffs' Complaint

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

Defendant Prime Peninsula, L.P.'s demurrer to the Second Cause of Action for Breach of Implied Warranty of Habitability is **OVERRULED**. The cause of action is not merely duplicative of the Breach of Contract claim because it seeks different damages.

The demurrer to the Fifth Cause of Action for Intentional Infliction of Emotional Distress is **OVERRULED**. The cause of action sufficiently pleads outrageous conduct.

The demurrer to the Sixth Cause of Action for Wrongful Eviction is **SUSTAINED**, with leave to amend. The Complaint fails to allege sufficient facts showing that Plaintiffs vacated the premises within a reasonable time. (*Pierce v. Nash* (1954) 126 Cal.App.2d 606, 612–613.)

Defendant's motion to strike ¶¶ 43, 56, 62, and Prayer for Relief ¶ 3, in the Complaint is **GRANTED** with leave to amend. (Civ. Code, § 3294, subd. (b).)

The first-amended complaint is to be served and filed within 30 days of this order.

Notice to be provided by moving party.

I. Background

This case is a landlord-tenant dispute. Plaintiffs Brittany Turner and Stephanie Potter (each individually a “Plaintiff” and collectively, the “Plaintiffs”) allege that they rented a residential apartment from defendant Prime Peninsula, L.P. dba Paz Mar (“Defendant”). Plaintiffs further allege that Defendant failed to take their concerns about potential asbestos exposure seriously; denied that the apartment had asbestos despite knowing that there was asbestos at the property; failed to timely investigate their complaints; failed to remediate the asbestos issue within a reasonable period of time; overcharged them for rent when they were relocated to a smaller unit during the remediation; and failed to protect or secure their personal property during the remediation process, resulting in some of their personal property being stolen or damaged.

On April 1, 2026, Plaintiffs filed the operative Complaint against Defendant for (1) breach of contract, (2) breach of the implied warranty of habitability, (3) nuisance; (4) negligence; (5) intentional infliction of emotional distress; (6) wrongful eviction; and (7) violation of Cal. Civ. Code section 1950.5. The Complaint alleges that in December 2023, Plaintiffs became tenants at a residential property owned and managed by Defendant. (Compl. ¶¶ 6, 7, 8.)

Defendant demurs on the grounds that the allegations in the Complaint fail to plead facts to support a cause of action for breach of the implied warranty of habitability, intentional infliction of emotional distress, and wrongful eviction. Defendant asks the Court to sustain the demurrer without leave to amend. Plaintiffs oppose.

Further, Defendant moves to strike all references to punitive damages in the Complaint. Plaintiffs oppose.

II. Demurrer

A. Legal Standard

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – *i.e.*, whether the complaint pleads facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) To properly state a cause of action, the complaint must sufficiently allege (1) every element of that cause of action, and (2) the plaintiff’s standing to sue. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.)

A general demurrer admits the truth of all factual, material allegations properly pled in the challenged pleading, regardless of possible difficulties of proof. (*Blank, supra*, 39 Cal.3d at p. 318.) “The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. A pleading is adequate so long as it apprises the defendant of the factual basis for the plaintiff’s

claim.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469-1470.) Thus, no matter how unlikely or improbable, plaintiff’s allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates* (1995) 36 Cal.App.4th 698, 709.)

B. Application

Defendant demurs to the second (breach of implied warranty of habitability), fifth (intentional infliction of emotional distress) and sixth (wrongful eviction) causes of action. Each is analyzed below.

1. 2nd Cause of Action – Breach of implied warranty of habitability (overruled)

“[A] tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability.” (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 918-919.) “The elements of a cause of action for breach of the implied warranty of habitability ‘are the existence of a material defective condition affecting the premises’ habitability, notice to the landlord of the condition within a reasonable time after the tenant’s discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.’” (*Peviani v. Arbors at California Oaks Property Owner, LLC* (2021) 62 Cal.App.5th 874, 891, internal citation omitted.)

Here, Plaintiffs allege the ceiling in Turner’s bedroom began falling off in pieces onto Plaintiffs and their belongings and that the fallen ceiling pieces tested positive for asbestos. (Complaint, ¶¶ 9, 10, 12, 14, 15.) Plaintiffs have therefore sufficiently alleged “the existence of a material defective condition affecting the premises.”

Plaintiffs further contend that they “immediately notified” Defendant’s property managers about the broken ceiling pieces and expressed their concerns about potential asbestos exposure. (Complaint, ¶ 9.) They also allege that after nothing happened, they submitted a work order. (Complaint, ¶ 10.) After Plaintiffs conducted their own asbestos test, they shared the results with Defendant. (Complaint, ¶ 14.) Accordingly, Plaintiffs have sufficiently alleged “notice to the landlord of the condition within a reasonable time after tenant’s discovery of the condition.”

Plaintiffs additionally assert that several months passed between their initial complaints to Defendant and Defendant’s relocation of Plaintiffs and commencement of remediation efforts. (Complaint, ¶¶ 9-17.) Plaintiffs have sufficiently alleged that Defendant was given a reasonable time to correct the deficiency.

Lastly, Plaintiffs allege that they overpaid rent since they were relocated to a smaller unit but paid their original rental sum, their personal property was damaged and stolen property during

remediation, and that they suffered emotional distress due to health and safety risks. Plaintiffs therefore sufficiently alleged damages.

Defendant argues that Plaintiffs' breach of implied warranty of habitability claim is duplicative of their breach of contract cause of action. A judge may properly sustain a demurrer without leave to amend as to a cause of action that contains allegations of other causes of action and, therefore, does not add anything to the complaint by way of fact, theory, or recovery. (*Palm Springs Villas II Homeowners Ass'n, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290. A judge is not required, however, to sustain a demurrer because a cause of action is duplicative. (See, e.g., *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 889-890.)

Regardless, Plaintiffs are correct that their breach of contract claim seeks "special damages" while their breach of habitability claim seeks "general and special damages." (Complaint, ¶¶ 29, 34; see also *Stoiber, supra*, 101 Cal.App.3d at pp. 915-916 [confirming that a plaintiff may recover economic damages under a contract theory, but under an implied warranty theory alleging a tort, a plaintiff may also recover non-economic damages].) Therefore, although the first cause of action and the second cause of action arise from the same or similar facts, the claims are not duplicative because they do not seek the same recovery.

For the foregoing reasons, the demurrer to the second cause of action is overruled.

2. 5th Cause of Action – Intentional infliction of emotional distress (overruled)

To properly plead a claim for intentional infliction of emotional distress, a party must allege: (1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of emotional distress. (*Newby v. Alto Riviera Apartments* (1976) 60 Cal.App.3d 288, 296.) "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." (*Ibid.* at p. 297.) No physical injury is required if the conduct is extreme and outrageous. (*Golden v. Dungan* (1971) 20 Cal.App.3d 295, 302-311.)

In *Aweeka v. Bonds* (1971) 20 Cal.App.3d 278, the landlord had failed to keep the premises in good repair and the tenant exercised his "repair and deduct" remedy under Civil Code sections 1941 and 1942. The landlord thereafter increased the rent from \$75 per month to \$145 per month; this increase was clearly not justified by the rental value of the premises, and the landlord was aware that the tenant could not pay the increased rent. (*Ibid.* at p. 280.) On these facts, it was held the complaint alleged a cause of action for intentional infliction of mental distress. (*Ibid.* at p. 281.)

Here, Defendant posits that "the conduct alleged in the Complaint does not rise to the level of extreme, outrageous, conduct and done with reckless disregard. The Complaint alleges that Defendant took action to address the alleged asbestos by engaging specialists, relocating

Plaintiffs, and performing remediation. Delay in completing repairs and inadequate communication do not amount to conduct exceeding all bounds usually tolerated in a civilized society.” (Memo. 4:28-5:4.)

That is not all that Plaintiffs allege, however. Instead, Plaintiffs contend that Defendant dismissed Plaintiffs’ asbestos exposure concerns; denied the existence of an asbestos problem while knowing that there was asbestos on the property, resulting in Plaintiffs living with falling asbestos material for months; only took remedial action after Plaintiffs took their own asbestos test; unreasonably delayed the commencement of remediation; the remediation lasted longer than promised, resulting in Plaintiffs’ inability to access personal items, such as medication and credit cards, for a longer period of time; and failed to protect their personal property during the remediation process, causing certain items to be damaged or stolen. Plaintiffs further allege as follows:

DEFENDANTS knew or reasonably should have known that their conduct would cause emotional distress and gave little or no thought [sic] to the probable effect of their conduct. Specifically, that the following acts and/or omissions would cause severe emotional distress:

- a. Causing the PLAINTIFFS to have to live with the substandard, dangerous and slum CONDITIONS at the SUBJECT PROPERTY for an unreasonable amount of time.
- b. Causing PLAINTIFFS to be displaced for months instead of the promised weeks.
- c. Preventing the PLAINTIFFS from accessing personal property such as medication and credit cards.
- d. Allowing PLAINTIFFS to continue to live in an asbestos filled unit and spreading contaminated materials throughout the SUBJECT PROPERTY.

(Complaint, ¶ 53.)

These allegations are sufficient to state a cause of action for intentional infliction of emotional distress. Accordingly, the demurrer is overruled as to this cause of action.

3. 6th Cause of Action – Wrongful Eviction (Sustained with leave to amend)

“In every lease the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises. In California this covenant is partially expressed in Civil Code section 1927, which guarantees the tenant against rightful assertion of a paramount title.” (*Guntert v. City of Stockton* (1976) 55 Cal.App.3d 131, 138.) Breach can take many forms, including actual or constructive eviction. (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1034.)

“[A]ny disturbance of the tenant’s possession by the lessor or at his procurement . . . which has the effect of depriving the tenant of the beneficial enjoyment of the premises, amounts to a constructive eviction, provided the tenant vacates the premises within a reasonable time. [Citations.]” (*Pierce v. Nash* (1954) 126 Cal.App.2d 606, 612–613; see *Kulawitz v. Pacific Woodenware & Paper Co.* (1945) 25 Cal.2d 664, 670 [“Any interference by the landlord by

which the tenant is deprived of the beneficial enjoyment of the premises amounts to a constructive eviction if the tenant so elects and surrenders possession, and the tenant will not be liable for rentals for the portion of the term following his eviction. [Citations.]”.)

There can be no wrongful eviction, actual or constructive, if the lessee continues in the possession of the premises. (*Slater v. Conti* (1959) 171 Cal.App.2d 582, 586.) “An essential element of a wrongful eviction claim is that the tenant has vacated the premises. [Citations.]” (*Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 900.)

Here, the Complaint alleges that Plaintiffs were relocated in January 2025 and that they returned to the unit in April 2025. (Complaint, ¶ 16.) After returning, they washed contaminated clothing in the shared laundry room per the managers’ advice and filed a renter’s insurance claim for discarded property according to the managers’ advice, which the managers knew would be denied. (Complaint, ¶ 19.) Plaintiffs continued to contact the managers about their stolen and damaged property, their over-payment of rent for the months during remediation, the results of the air test, and their concern about the cracked ceilings containing asbestos, and Defendant ignored these complaints and filed eviction proceedings instead. (Complaint, ¶ 20.) They vacated the apartment on January 25, 2026. (Complaint, ¶ 21.) Defendant contends that the foregoing fails to show that Plaintiffs vacated the apartment within a reasonable time. In the Opposition, Plaintiffs do not address this argument.

The Court finds that the Complaint fails to plead sufficient facts demonstrating that Plaintiffs vacated the premises within a reasonable time when the remediation was completed in April 2025 and Plaintiffs did not leave the apartment until January 2026 (*i.e.*, approximately nine months later). (*Pierce, supra*, 126 Cal.App.2d at pp. 612-613.) Accordingly, the demurrer to this cause of action is sustained, with leave to amend.

III. Motion to Strike

Defendant moves to strike the following portions of the Complaint: paragraphs 43, 56, and 62, and Prayer for Relief, paragraph 3, all of which pertain to punitive damages. Defendant requests that all references to punitive damages be stricken in their entirety, pursuant to California Code of Civil Procedure sections 435 and 436 on the ground that the Complaint fails to adequately allege facts supporting this claim for damages.

A. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules Court, rule 3.1322, subd. (b).) The Court may, upon motion, or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a) & (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).)

Corporations may be held liable for punitive damages through the malicious acts or omissions of their employees, but only for the acts or omissions of those employees with sufficient discretion to determine corporate policy. (*Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167.) Section 3294, subdivision (b), provides:

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

The term “managing agent” includes only those corporate employees who exercise substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy. (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566-567.)

B. Application

Here, Defendant contends that the Complaint’s allegations for punitive damages fail to plead that an employee of Defendant who is its officer, director, or managing agent engaged in the alleged wrongful conduct. Plaintiffs’ Opposition to the Motion to Strike does not address this argument.

The Court finds that the Complaint does not allege Defendant had prior knowledge of the unfitness of the managers (or any other employee of Defendant) and employed them with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are sought. The Complaint also does not allege that the managers were Defendant’s officer, director, or managing agent within the meaning of section 3294, subdivision (b).

Accordingly, the Court grants the Motion and strikes the following portions of the Complaint: paragraphs 43, 56, 62, and Prayer for Relief, paragraph 3, Punitive damages, with leave to amend.